
This act summary is provided for the convenience of the public and members of the General Assembly. It is intended to provide a general summary of the act and may not be exhaustive. It has been prepared by the staff of the Office of Legislative Counsel without input from members of the General Assembly. It is not intended to aid in the interpretation of legislation or to serve as a source of legislative intent.

Act No. 138 (H.211). An act relating to data brokers and personal information

Subjects: Commerce and trade; protection of personal information; data breaches; data brokers; Cybersecurity Advisory Council; educational technology

This act updates and adds definitions to the chapter regulating the protection of personal information, including the definitions of “brokered personal information,” “data broker,” “publicly available information,” and “sale.” This act adds a requirement that data brokers can only disclose brokered personal information to a person after the data broker verifies the person and the purposes for the information.

The act also makes technical changes to the Security Breach Notice Act and adds the Data Broker Security Breach Notice Act. The Data Broker Security Breach Notice Act requires that, when applicable, data brokers must notify the Attorney General and affected consumers when there is a data breach affecting the brokered personal information of Vermonters.

This act makes various updates to the subchapter that regulates data brokers. The registration fee for data brokers is increased to \$900.00 annually, and data brokers are required to supply more information about their business when registering with the Secretary of State. The fines for data brokers that violate the registration law are increased as follows: \$200.00 for each day that a data broker operates in the State without having registered; \$1,000.00 for each day a data broker fails to provide all required registration information; and a civil penalty of \$25,000.00 for filing materially incorrect information at registration along with a \$1,000.00 fine each day thereafter that the data broker fails to correct the information.

This act also requires the Secretary of State to study and report on the feasibility of establishing an online system that would permit a consumer to delete the consumer’s brokered personal information held by various data brokers. The final report is due on December 1, 2028.

The act amends the Cybersecurity Advisory Council by adding three new members to the Council and by extending the repeal date of the Council to 2033.

This act also requires a provider of educational technology products to provide the State with more information about its business when conducting a filing with the Secretary of State, including supplying a link to its most recent privacy policy and the name and description of each educational technology product it provides.

Multiple effective dates, beginning on July 1, 2026